TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
SEPTEMBER 30, 2024
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Stephen Wood, Molly Hall, Julian Hopkins.
Staff: Kara Browder, Lynnette Lynes

Mr. Wood called the meeting to order at 6:02 pm.

A. Approval of Agenda

Mr. Butner moved for approval of the agenda with moving following item to be discussed first:

- *Case V-35-24, 3643 Marginal Road, TMS# 614-01-00-010. Request for relief from §156.111(A)(4) to exceed the accessory structure building footprint maximum requirement by 758 sq ft.*

Mr. Branch seconded the motion. All in favor.

B. Approval of Minutes

Mr. Butner moved for approval of the minutes. Mr. Branch seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or general correspondence, Mr. Wood closed public comment and continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood explained the procedures with the public and administered the oath to those speaking.

G. Business

1. Case V-35-24, 3643 Marginal Road, TMS# 614-01-00-010. Request for relief from §156.111(A)(4) to exceed the accessory structure building footprint maximum requirement by 758sqft.

▶ Mr. Ryan Nevels, attorney for applicant, requested a deferral due to medical issues.

▶ *Mr. Butner moved for deferral to the next meeting. Ms. Stevens seconded the motion. All in favor.*

2. Case V-33-24, 1464 Kinglet Drive, TMS# 560-12-00-028. Request for relief from §156.111(A)(5) to allow an accessory building to exceed the maximum height requirement by 5-feet 3-inches.

▶ Ms. Browder reviewed staff comments with the Board. She stated that due to an error in the Board's motion for a deferral instead of a continuance, a continuance should be considered for an additional 30 days as it was originally intended.

▶ *Mr. Branch moved for a continuance for up to 30 days. Ms. Stevens seconded the motion. All in favor.*

3. Case V-34-24, 606 Deytens Court, TMS# 559-06-00-057. Request for relief from § 156.303(Table) to allow an encroachment into the rear setback.

▶ Ms. Browder reviewed staff comments with the Board.

▶ Mr. David Williamson, owner, reviewed the request with the Board.

▶ *Mr. Barrow moved for deferral for confirmation on the amount of encroachment into the setback with a revised site plan. Mr. Hopkins seconded the motion. All in favor.*

4. Case S-01-24, 210 West Coleman Boulevard, TMS# 517-00-00-042. Request for special exception to allow a telecommunications tower to be placed on an AB-2 zoned parcel.

▶ Ms. Browder reviewed staff comments with the Board.

- Mr. Gray Soapes, WCBD General Manager, reviewed the request with the Board.

- *Mr. Branch moved for approval with the condition that the easement agreement is reviewed and approved by staff and recorded. Mr. Stevens seconded the motion.*

- *Mr. Barrow moved to amend the motion to clarify that the easement agreement should be reviewed and approved by staff and the Legal Department. Mr. Branch seconded the amendment. All in favor.*

- *Mr. Wood called for a vote on the motion as amended. All in favor.*

5. Case V-36-24, 1307 Porchers Bluff Road, TMS# 578-00-00-182. Request for relief from §156.201(D)(Table) to waive the fencing requirement of the Type D bufferyard.

- Ms. Browder reviewed staff comments with the Board.

- Mr. Daniel Etheridge and Ms. Emmie Butler, SWA, reviewed the request with the Board.

There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Butner moved for approval based on the findings that it meets the four criteria outlined by the staff, particularly that the denial would unreasonably restrict the use of property. Mr. Hopkins seconded the motion. Motion passed on a 6 to 1 vote, with Mr. Butner, Mr. Branch, Mr. Hopkins, Ms. Stevens, Ms. Hall and Mr. Wood in favor; Mr. Barrow opposed.*

There being no further business, the meeting adjourned at 6:52 pm.

Submitted by,
L. Lynes
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